

**CV-25-008039 MID VALLEY AGRICULTURAL SERVICES INC vs KATICICH RANCH LLC – Plaintiff's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure 664.6 – GRANTED, and unopposed.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Plaintiff's unopposed motion to enforce the parties' written settlement pursuant to Code of Civil Procedure section 664.6 is GRANTED as to the unpaid settlement amount of \$271,184.46 and interest of \$6,787.16. On July 1, 2026, Plaintiff filed the instant motion to enforce settlement agreement. On September 3, 2026, this matter was previously continued on information that Defendant had just retained counsel. There is no opposition in the Court file. The parties executed a written stipulation authorizing entry of judgment in the event of default, and the Court retained jurisdiction to enforce the settlement. Plaintiff has submitted a declaration establishing that Defendant has failed to make any payment towards the principal amount due under the settlement agreement or the daily interest of \$117.02 due after November 31, 2025. The Court finds that Plaintiff is entitled to judgment in the amount of \$277,971.62. Costs Plaintiff also seeks an award of \$60.00 in costs as filing fees for the instant motion. Paragraph 2 of the parties' settlement agreement states that each party is to pay its own costs and attorneys' fees. The request for costs is DENIED. Proposed Order & Proposed Judgment The proposed order submitted by Plaintiff includes an award of costs. Because the Court has denied Plaintiff's request for costs, Plaintiff shall submit a revised proposed order accurately reflecting this ruling within five court days. Plaintiff is also directed to serve and submit a proposed judgment. (Cal. Rules of Court, rule 3.1312.)

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Costs

Plaintiff also seeks an award of \$60.00 in costs as filing fees for the instant motion. Paragraph 2 of the parties' settlement agreement states that each party is to pay its own costs and attorneys' fees. The request for costs is DENIED.

Proposed Order & Proposed Judgment

The proposed order submitted by Plaintiff includes an award of costs. Because the Court has denied Plaintiff's request for costs, Plaintiff shall submit a revised proposed order accurately reflecting this ruling within five court days. Plaintiff is also

directed to serve and submit a proposed judgment. (Cal. Rules of Court, rule 3.1312.)